

## 22STCV29451 22STCV29451

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-16

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Case Number: 22STCV29451 Hearing Date: July 16, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

THE JANKOVICH COMPANY

vs.

HOOMAN TOYOTA OF LONG BEACH, et  
al.

Case No.: 22STCV29451

Hearing Date: July 16, 2026

Defendant Nissani's  
motion for summary judgment is DENIED.

On 9/9/2022,  
Plaintiff the Jankovich Company (Plaintiff) filed suit against Hooman Toyota of  
Long Beach, Hooman Hyundai of Culver City, Hooman Crysler, Hooman Nissan of  
Culver City, Nissani Brothers Nissan, Nissani Brothers Chevrolet, and Hooman M.  
Nissani, alleging: (1) breach of contract; (2) account stated; (3) money due;

(\$) breach of contract; and (5) money due.

On

4/24/2026, Defendant Hooman Nissani moved for summary judgment.

Discussion

Defendant

argues that Plaintiff's fourth and fifth causes of action fail as a matter of law, as the fourth cause of action is barred by the statute of limitations and the fifth cause of action is derivative of the same alleged guaranty debt and Plaintiff cannot establish a timely, independent post-sale written obligation by Nissani.

However,

in opposition, Plaintiff raised several argument which indicate that the motion must be denied.

First,

Nissani failed to provide sufficient notice for the motion under CCP section 427c. "Notice of the motion [for summary judgment] and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing." (C.C.P. § 437c(2).) This 81-day period is a mandatory minimum. If the notice is electronically served, "the required 81-day period of notice shall be increased by two court days." (Id.)

Here,

Defendant filed and served the Notice and Motion for Summary Judgment on 4/24/2026 for the 7/16/2026 hearing date. Eighty-one (81) days prior to the hearing date is 4/26/2026, which is a Sunday. Defendant served the Motion via electronic service, requiring an additional two court days. To comply with CCP section 437c, the latest the Motion could have been filed was Thursday, 4/23/2026.

In

a reply, Defendant completely ignored this issue, which the Court takes to be a concession on the merits.

Second,

Nissani has still failed to respond to Plaintiff's Form Interrogatories and only provided responses to Requests for Production and Requests for Admission

in conjunction with the filing of the motion for summary judgment. In those late responses, Nissani indicated that financial records were in the custody and control of unknown persons but also admitted at deposition that many corporate record boxes went unexamined. Moreover, Plaintiff contends that Defendant's responses were inadequate and prevent Plaintiff from obtaining competent evidence to respond to Nissani's motion.

Based  
on the foregoing, Nissani's motion for summary judgment is denied.

It is so ordered.

Dated: July  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [email protected] by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.